

Gangawwa vs Renukappa on 6 October, 2009

Author: A.N.Venugopala Gowda

Bench: A.N.Venugopala Gowda

IN THE HIGH COURT OF KARNATAKA
CIRCUIT BENCH AT DHARWAD

DATED THIS THE 06th DAY OF OCTOBER,

BEFORE

THE HON'BLE MR. JUSTICE A.N. VENUGOPALA GOWDA

CRIMINAL APPL EALL\Ai().C1I_ZC.37 .. "

BETWEEN:

Gangawwa

W/o Renukappa Burli

Aged about 25 years . 9
Resident of Bistralli Taluk, - - - - -

District Koppali. C APPELLANT

(By Sri: B. Shérana'rD*asav'a; Adv_for-J
Prime E;aw_Assoc.ia'tes)s __

AND:

1 Renukappa _

Aged about 33 years"

5 voYelfap_Da"B'ur|I'

v~-{.)ccA:'Radio N'@Ch.\$niC and Agriculture

= A Re'SCI'dirigéat Tadkal Taluk
V . _Ye.|Vb'urg«a; '*

2 " ~VSmt;Lajxr7r3avva
--. __Ag_ed~ about 26 years
W/o_Renukappa Burli
Residing at Tadkal Taluk
C' 'Ce-Xelburga

Ramanna

Aged about 38 years
S/0 Yellappa Burli
Residing at Tadkai Taiuk
Yeiburga

Laxmavva, Aged major
W/0 Ramanna Burli
Residing at Tadkal Talukg.
Yelburga. "

Nagawwa

Aged about 65 years

W/o Yeilappa Burii"- . _ ; _ ;
Residing at Tadkal Tai-ugk ' '
Yeiburga V -

Kasimappa if __ A _

Aged eiiboi.-'ti4'0''y.e.afs'i'. '- " V 7
8/0 Irappa~H:a,dima'niV_ "* "
Res'idiir'ig.V::,i,t Mfi'j;. 'Viiige.-j0ni _

Shanizrawwa' »- A A
Aged also Lit 35. yea rs"

_ 'i/V/o,Kas:rnaV_ppa Hadtmani
..f_ 'Re.sidini_g at Mue-niger Oni
' i<oppa|_4

A

Aged 'atmut 35 years

"VS/e_." Sanna Linga ppa Muchiger

Residing at Manjunath Oni

.. Navalgund.

9 Shivgangamma

Aged about 32 years

W/o. Nagiingappa Muchger

Occ. Cooiie

Residing at Manjunath Oni
Navalgund

10 Shavakka

Aged about 55 years

W/o.Maiiappa Haveri g

Occ: Coolie
Residing at Hebballi Maso_oti'M_u*c_hager'Oni
Dharwad. " it it

11 Manjunath -. V
Aged about=35 yeia-rs» « .1'
5/0. Ma||:a\$:.'\$.i.aVZ'* _
Occ. Coofie . 1 _ ~ _ '
Residing atvHebbaiiii*~\$Ma'sooti Mguchager Oni

RESPONDENTS

(Parties in De rson)\ ,, A A Cr|.AAis""f"ii'ecf under Section 378 (4) CR.P.C vorayingto set aside the Judgement dated 24.5.2003 '<pa's:-sed. 'byKr\$he"3MFC., Koppai, in C.C.No. 366/2000 - acq'u.itting<" _~the:;""Respondents/Accused for the offences punishable under Section 494 of IPC read with Section 17 A it _ of The Hindu "Marriage Act.

_ - at Th'i:s'¢Cri.A is coming on for Hearing this day, the " '*C_ourt"jmade the foiiowingz Section 494 of IPC read with Section 17 of the Hindu Marriage Act. Process was issued to the accused _p'e_r'sons i.e., the respondents herein and they entered _

3. Charges framed havingv"h'e'e'r:* pleading not guilty, trial was conduvcited._duringi;_which,"the complainant deposed as thre'e_V_ i.e., PWs2 to 4 were examined..'_in ut'he_accédsatio4n made in the complaint. Ex.P1'Va-nodZfiwereyv'aAI'\$.;_□.'marked. The defence did no't':.i.,¢p}:d any,e.vider1ce,~...,____,S3'tatement of the accused persons""q,n'd'e-r .S'ec,t.ionV..3,13'=.Cr'.P.C. was recorded. _Leari'1ed_,:"iT'ria:i:---..Judge having heard the argumentsand garter"ap»p,r'e»ci'ating the evidence on record, has yhgeild that, complainant has failed to prove that, aAccu,sed_v'i'A\$§Io.:3,*--..has married Smt.Laxmavva, the accused and thereby committed an offence . punis'iwa'o.|'e. 'under Section 494 of IPC and that thereby coimmitted. an offence of bigamy. In view of the findings _',i,~_récVo'rded, accused persons were acquitted and the 'i //' .'/' complaint was dismissed. Aggrieved, this appeal has been preferred.

5. I have heard Sri.Sharanabasava,.... Counsel appearing on behalf of Prime Law the appellant. Learned Counsel Court has erred in not believing the4tes□monyj.(;f:'Pi.'V2v it the appreciation of evidence""ofV:""lall other""ii.n,}i.tne.sses, is illegal. Learned Counsei~..con_tended_ theh□hvdings of the Trial Court that, the cornp',I'a:i'n'ant.:lAha.s.failed to prove the second mar"r'i.a:ge l3_ey;on~d "reason.a_b\$e doubt, is not correct,, 'l'in'C'View of"thé'».\$'videnVce' on record and

hence into the evidence is 'ca I le«dffolrv.« _ . _ ' .. 4"

6. havei.per.us.eo'--.the records. _;7." As "a,_l_ready' noticed, the complainant has Three other witnesses have deposed as P'N2-"._t,o alleged to be present and witnessed _ the riarriagei'of accused No.1 and 2. The Trial Court after ,Vnoti,cingV'the evidence of PW2 and apprgciating the same / with reference to the evidence of PW1, PW3 and 4, has held that, there is discrepancy in the evidence of the witnesses and there is no corroborative evidence on record, to establish the alleged marriage between accused No.1 and 2. It has found that, the evidence of 4 being hearsay is not helpful.

8. A perusal of deposi;ion:'ofA., indicates that, PW1, 3 and 4 were niotllpreseniz-"a.t,. the of alleged marriage of accusedlll□lil and"2.V_o'n :.G8..'G,f3.Vi997. Evidence of PW2 does. t,he_fact'Hof rnarriage having1"ta'iCe'ntiipalaciéall'b:ei:»ween u _ "Accvused No.1 and 2 on 08.05.1\$97,- and 2 have denied the marriage be-tw'een'.*« ti'1erri". The complainant i.e., the "V"«.,appe.ll'an;jc.,.:ha.,g failxeicito'establish that the marriage having V"ita'i<e_n'place»v4on,:Q,8.O5.1997 between accused No.1 and 2. Inthae of the matter, the Trial Court has correctly ii'-.4.,_"vrecorded__Athe finding that, the offence alleged against the has not been established.

\- " 8

9. The evidence piaced on record, has been correctly appreciated by the Court below. There is no illegality as such committed in the matter. No cajse is made out for interference, since the Empugned',...jd4d□riie~nt"

refers to the material aspects of the case..V__»"Th.ere."~ivs merit in this Appeal and the same

10. Ordered accordingh/_ . A ' i sa,/e i